

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 06/10/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>Anderson/Callahan - Trust</u>	TENTATIVE RULING Case: Anderson/Callahan - Trust 01389721 Date: 06/10/26 MOTION FOR SUMMARY JUDGMENT Trustee Michael L. D'Angelo's Motion for Summary Judgment, or, Alternatively, Summary Adjudication (ROA 198) is DENIED. The court does not rule on D'Angelo's Objections to Evidence (ROA 280) because none of the evidence objected to was material to the court's disposition of this motion. I. RELEVANT PROCEDURAL HISTORY Trustee Michael L. D'Angelo ("D'Angelo") seeks summary judgment or, in the alternative, summary adjudication of issues raised by petitioner Deena Callahan's Amended Petition for an Order: (1) Invalidating the Adelaide Veronica Anderson 2024 Revocable Trust [Trust]; (2) Affirming the Validity of the Adelaide Veronica Anderson and Deena Callahan Living Trust; (3) Removing Trustee Michael D'Angelo; (4) Finding Breach of Duty; (5) For an Accounting; (7) Attorney's Fees and Costs; (7) Damages; and (8) Double Damages. ("SAP" filed as ROA 44.) Deena Callahan ("Callahan") is one of the three children of Adelaide Veronica Anderson ("Decedent"). The other two children are Dawn Bishop ("Bishop") and respondent Eric Anderson ("Anderson"). According to the SAP, Decedent created The Adelaide Veronica Anderson and Deena Marie Callahan Living Trust in 2014 (2014 Trust). The 2014 Trust named all three children as beneficiaries, each entitled to one-third of the trust property upon Decedent's death. On February 16, 2024—two days before Decedent's death—another trust, the Adelaide Veronica Anderson 2024 Revocable Trust (2024 Trust) was allegedly created. The 2024 Trust left 70% of the trust property to Anderson, and only \$200,000 each to Callahan and Bishop. D'Angelo, allegedly a friend of Anderson's, was named as successor trustee in the 2024 Trust. Callahan alleges the 2024 Trust was the result of fraud and/or undue influence by Anderson and D'Angelo. She also asserts Decedent lacked capacity at the time the 2024 Trust was allegedly signed and that Decedent's purported signature on the 2024 Trust may have been a forgery. Based on those allegations, Callahan seeks to invalidate the 2024 Trust and affirm the validity of the 2014 Trust. Callahan also seeks to remove D'Angelo as trustee based on the assertion that he participated in the fraud/undue influence that led to the execution of the

	2024 Trust and, also, that as trustee he has been hostile to and refused to cooperate with Callahan, thereby impairing his ability to properly administer the 2024 Trust. Finally, she seeks an accounting and an award of fees and costs. D’Angelo now seeks summary judgment of the SAP on the following grounds: “1. Petitioner’s cause of action to invalidate the Trust fails as a matter of law. [¶] a. The Trust was indisputably notarized and is not forged. [¶] b. Petitioner cannot establish essential elements of her fraud claim, i.e. any untrue statement and intent to deceive and/or induce Adelaid Anderson to sign the Trust. [¶] c. Petitioner cannot establish her undue influence claim, i.e. “excessive persuasion that causes another person to act or refrain from acting by overcoming that person’s free will. [¶] 2. Even if this Court should find any triable issue of fact as to whether the Trust was procured by forgery, fraud, and/or undue influence, there is no triable issue of fact as it pertains to Respondent D’Angelo’s involvement in any alleged forgery, fraud, and/or undue influence. [¶] 3. Petitioner’s cause of action to affirm the 2014 Trust fails as a matter of law. Since the Trust is not invalid, the 2014 Trust cannot be affirmed. Furthermore, it is undisputed that the 2014 Trust was revoked. [¶] 4. Petitioner’s cause of action to remove Trustee Michael D’Angelo for breaches of duty fails as a matter of law. There is no triable issue of fact as to any of the bases asserted by Petitioner in support of her request to remove Trustee D’Angelo as Trustee of the Trust.” (Motion [ROA 198] at 2:16-3:7.) II. MOTION FOR SUMMARY JUDGMENT A respondent moving for summary judgment may prevail on the motion in one of three ways: (1) by affirmatively negating at least one of the elements of petitioner’s claims; (2) by showing that petitioner “does not possess and cannot reasonably obtain” evidence to establish an essential element; or (3) by presenting evidence as to each element of an affirmative defense upon which the respondent bears the burden of proof at trial. (CCP §437c; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal. 4th 826, 851, 854.) The burden does not shift to the petitioner until and unless the respondent meets their initial burden. (<i>Id.</i>; <i>Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose</i> (2009) 174 Cal. App. 4th 339, 354 [“[w]here the evidence submitted by a moving defendant does not support judgment in his favor, the court must deny the motion without looking at the opposing evidence, if any, submitted by the plaintiff”].) It is well-settled that if respondent meets its burden on any one of the three options, the burden shifts to petitioner, who must show by substantial evidence that a triable issue of material fact exists as to the claim or defense. The law clearly provides that the issues that may be raised on summary judgment are defined by the pleadings. (<i>Allyson v. Department of Transportation</i> (1997) 53 Cal. App. 4th 1304, 1315 [“the first step is an analysis of the pleadings, i.e., the complaint and answer, including any affirmative defenses it may contain. ‘The pleadings define the issues to be considered on a motion for summary judgment.’”]; <i>AARTS Productions, Inc. v. Crocker National Bank</i> (1986) 179 Cal. App. 3d 1061, 1064 [“First, we identify the issues framed by the pleadings since it is these allegations to which
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	the motion must respond by establishing a complete defense or otherwise showing there is no factual basis for relief on any theory reasonably contemplated by the opponent's pleading.”].) In this case, among other things, the SAP seeks an accounting from D’Angelo as trustee. (SAP at 11:1-11.) The motion for summary judgment does not address the request for an accounting. Because the accounting claim remains unchallenged, judgment cannot be entered on the full petition and the motion for summary judgment must be DENIED. (Code of Civ. Proc., § 437c(c) [“The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law”].) IV. MOTION FOR SUMMARY ADJUDICATION Summary adjudication is governed by Code of Civil Procedure § 437c (f)(1) which reads as follows: “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Emphasis added.) Issue No. 2 as listed in the separate statement, which is entitled “Even if this Court should find any triable issue of fact as to whether the Trust is invalid, there is no triable issue of fact as to Petitioner’s claims against Respondent Michael D’Angelo,” addresses unspecified “claims.” It does not seek summary adjudication as to a “cause of action, an affirmative defense, a claim for damages, or an issue of duty” as required by Code of Civil Procedure section 437c (f)(1), rather it appears to address unspecified claims. Accordingly, the court does not consider Issue No. 2. In addition, the court notes that the motion for summary adjudication fails to comply with California Rules of Court, rule 3.1350(b), which requires “the specific cause of action, affirmative defense, claims for damages, or issues of duty to be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” In this case, the issues identified in the separate statement are not stated in the notice of motion. A. Issue No. 1 Issue No. 1 asserts: “The [2024] Trust is not invalid and therefore judgment as a matter of law must be entered against Petitioner’s claim to invalidate the Trust.” In support of this issue, D’Angelo asserts Decedent “signed the Trust on February 16, 2024.” (UMF #8.) In support of that assertion, D’Angelo offers
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¶ 3 of his own declaration, which reads: “I am the Trustee of the Adelaide Veronica Anderson Trust dated February 16, 2024 (the “Trust”). Attached hereto and incorporated herein as Exhibit “D” is a true and correct copy of the Trust.” (ROA 197 at p. 38, lines 8-10.) The cited paragraph does not offer **any support** for the assertion that Decedent executed the 2024 Trust on any date, let alone that she executed it on February 16, 2024. The court examined the entire D’Angelo’s declaration to determine if the paragraph number was an error. However, no statement in the D’Angelo declaration provides evidence to support knowledge regarding Decedent’s execution of the 2024 Trust. In fact, to the contrary paragraph 14 of D’Angelo’s declaration attests that he was not present when Decedent signed the 2024 Trust. (Paragraph 14 is identified as the supporting evidence for UMF #10, which states: “Trustee D’Angelo was not present when [Decedent] signed the [2024] Trust.”)

D’Angelo also asserts Decedent executed a revocation of the 2014 Trust on the same date (February 16, 2024). (UMF #12.) In support of this assertion, he offers ¶ 3 of the Declaration of Timothy S. Camarena, which reads, in full: “In my conversation with [Decedent] I did not detect that [Anderson] was coaching her. She seemed to be speaking freely and in a normal conversational tone.” (ROA 197 at 33:27-28.) The cited evidence **does not** support the asserted fact.

Based on the record presented and the applicable legal principles, the court finds that D’Angelo failed to meet his burden of proof on his assertion that the 2024 Trust was a valid trust executed by Decedent. Accordingly, summary adjudication of Issue No. 1 is **DENIED**.

B. Issue No. 3

Issue No. 3 asserts: “Petitioner’s cause of action to affirm the 2014 Trust fails as a matter of law. The issue is based on the argument that the 2014 Trust cannot be affirmed because the 2024 Trust is valid. The undisputed material facts offered in support of Issue No. 3 are, in part, duplicative of those offered in support of Issue No. 1. Specifically, UMFs #106 and #110 are identical to UMFs #8 and #12, which as discussed above, and therefore fail to meet D’Angelo’s burden on the issue of Decedent’s execution of the trust. Summary adjudication of Issue No. 3 is **DENIED**.

C. Issue No. 4

Issue No. 4 asserts: “Petitioner’s cause of action to remove Trustee Michael D’Angelo for breaches of duty fails as a matter of law.” Once again, the undisputed material facts offered in support of Issue No. 4 are, in part, duplicative of those offered in support of Issue No. 1. Specifically, UMFs #174 and # 178 are identical to UMFs #8 and #12, which as discussed above, fail to meet D’Angelo’s burden on the issue of execution of the trust. In addition, the evidence presented in support of Issue No. 4 fails to address D’Angelo’s alleged failure to provide an accounting, which is alleged as breach of duty in the SAP. It also fails to address the assertion that Callahan was named as successor trustee in the 2014 Trust (ROA 44 at ¶ 3), which means D’Angelo will necessarily be removed as trustee if the 2014 Trust is affirmed. Accordingly, Summary adjudication of Issue No. 4 is **DENIED**.

Accordingly, based on the record presented and the applicable legal principles, Trustee Michael L. D’Angelo’s Motion for Summary Judgment, or, Alternatively, Summary Adjudication (ROA 198) is **DENIED**.

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